

Civ. Pro.—Before Trial”), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor’s compromise and concluding that a judge “may decide a petition to approve or disapprove a minor’s compromise on an ex parte basis, in chambers”). In any event, no party has sought to appear to oppose the Minor’s Compromise.

6. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO HIRENE SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

See LINE 5 above.

7. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO FRANKLI ESTUARDO SALES SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

See LINE 5 above.

8. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS SET 1 ON PETER DOCTER**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Hoffman (“Plaintiff”) filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants. Collectively, these motions are referred to herein as the “Motions to Compel Further Responses.” The Motions to Compel Further Responses were set for hearing on various dates and ultimately consolidated for hearing on the March 23, 2026 calendar by the Court. See Order entered February 19, 2026. The Court also directed the parties to confer further and advise as to the items that remain in dispute.

The parties filed a Joint Report on March 12, 2026 that details the particular discovery requests that remain in dispute, as detailed further below.

The Court addressed a number of the requests in its prior Order entered April 1, 2026 (the “April 1st Discovery Order”). As part of that order, the Court ordered the parties to meet and confer further regarding certain Remaining Discovery Requests, as set forth further below, and to file, thereafter, Joint Separate Statement before the next hearing date set for May 18, 2026.

The partes filed the Joint Separate Statement on May 4, 2026.

Background

The discovery requests which remain at issue, as addressed in the Joint Separate Statement (collectively, the “Remaining Discovery Requests at Issue”) are the following:

1. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter RPDs**”) – **Nos. 14, 19 and 20**;
2. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker RPDs**”) – **Nos. 13 and 14**;
3. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Mark Becker, Inc. (the “**MBI RPDs**”) – **Nos. 13 and 14**;
4. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Comerica Bank & Trust, N.A. (the “**Comerica RPDs**”) – **NONE**; and
5. Special Interrogatories (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter SROGs**”) – **NONE**.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statements, the Opposition papers and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests at issue:

Remaining Discovery Requests

Peter Docter RPDs – Nos. 14, 19 and 20

Peter Docter RPDs, No. 14. The parties conferred on the scope of the responsive production and Plaintiff indicates to the Court that the scope of the remaining dispute is over the production of responsive documents relating to “costs and expenses of the Development” as further limited by time and type of materials, as summarized in the Joint Separate Statement. While Plaintiff may have sought to confer on a more limited scope of production as part of the meet and confer, agreement was reached. Therefore, the Court must now consider the request as framed by the operative

discovery request. As framed, the Court finds that the request is overbroad and not reasonably calculated to lead to the discovery of admissible evidence. The broad-brush recitation of relevancy of the “costs and expenses” documentation fails to adequately articulate what specific financial documentation and the information contained therein would have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue. Even if such a connection were articulated, that might well justify an appropriately framed and more limited discovery request. But, that does not sufficiently justify compelling a further response to the subject request as it was framed and propounded. A court—in connection with deciding whether to compel a further response—has no obligation to redraft a party’s discovery requests in order to limit it to a proper scope. See *Deaile v. General Telephone Co. of California* (1974) 40 Cal.App.3d 841, 851; see also *Ryan v. Superior Court of Los Angeles County* (1960) 186 Cal.App.2d 813, 817 (“...if the interrogatories are so framed as to require the disclosure of relevant as well as irrelevant matter, the trial court in the exercise of its discretion may refuse to order such interrogatories answered.”). The Court finds that the moving party has failed to set forth specific facts showing good cause justifying the discovery sought by the demand. Accordingly, the request to compel a further response to this inspection demand is **DENIED**.

Peter Docter RPDs, No. 19. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Peter Docter RPDs, No. 20. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Mark Becker RPDs – Nos. 13 and 14

Mark Becker RPDs, No. 13. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Mark Becker RPDs, No. 14. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

MBI RPDs – Nos. 13 and 14;

MBI RPDs, No. 13. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

MBI RPDs, No. 14. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Sanctions

The Court reserved consideration of the imposition of sanctions pending resolution of the further proceedings.

As to the discovery requests on which the Court ruled, the Court uniformly denied each of the requests to compel a further response, both in this order and the Court’s prior order. See April 1st Discovery Order. A number of the requests were denied because Plaintiff failed to engage in statutorily compliant meet and confer efforts before resorting to the motions. *Id.*

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

At least as to a portion of the subject discovery requests at issue, the Court further finds that the moving party’s conduct constituted failing to confer or to attempt to confer, in person, by telephone,

or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions (the “Monetary Sanctions”).

While the Court finds that Monetary Sanctions are appropriate, the Court recognizes that a portion of the discovery issues raised by the Motions to Compel Further Responses were resolved by meet and confer. The Court is inclined to consider that fact in mitigation.

Disposition

The Court further finds and orders as follows:

1. The Remaining Discovery Requests are **DENIED** as set forth further above.
2. **Determination of Monetary Sanctions.** In order to assess and fix the reasonable expenses, including attorney’s fees or other costs, incurred by defendants as a result of the foregoing conduct by the moving party, the Court makes the following orders:
 - a. **Defendants’ Supplemental Declaration regarding Monetary Sanctions.** Within **thirty (30) days** of notice of entry of this order, defendants shall file and serve a declaration signed under penalty of perjury (“Supplemental Declaration regarding Monetary Sanctions”) setting forth any and all reasonable expenses, including attorney’s fees or other costs, incurred by defendants as a result of the above discovery misconduct. Such submittal shall include any supporting billing statements. **A single pleading shall be filed and set forth a single accounting of the expenses as to all of the motions.**
 - b. **Content and Length of Supplemental Declaration.** Defendants’ Supplemental Declaration regarding Monetary Sanctions shall not exceed 5 pages, excluding any evidentiary attachments such as supporting attorney billing statements or other documentation of reasonable expenses. Any redaction of billing statements regarding privilege issues should be as minimal as possible in order to facilitate the Court’s review and consideration of the scope of the legal services provided.
 - c. **Meet and Confer.** Within **fourteen (14) days** after service of the defendants’ Supplemental Declaration regarding Monetary Sanctions, the parties shall meet and confer, in good faith, to attempt to resolve the issue of the Monetary Sanctions.
 - d. **Moving Party’s Further Response.** Within **thirty (30) days** after service of defendants’ Supplemental Declaration regarding Monetary Sanctions, Plaintiff shall file and serve any further responsive declaration or other opposition papers regarding the Monetary Sanctions sought.
 - e. **No Reply.** No further reply papers shall be submitted regarding the issue of the Monetary Sanctions.
 - f. **Further Hearing.** The issue of Monetary Sanctions shall be set for further hearing on **August 3, 2026, 9:00 am, in Department 34** of the Court. The Court reserves jurisdiction regarding the determination and imposition of the Monetary Sanctions.
3. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST, N.A.
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

10. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST;
REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

11. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT PETER DOCTER; REQUEST FOR
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

12. 9:00 AM CASE NUMBER: C24-03201
CASE NAME: CASSANDRA JACKSON VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: LEAVE TO FILE COMPLAINT IN INTERVENTION - ADVANCED FROM
8/10/26
FILED BY: CONTRA COSTA COUNTY SCHOOLS INSURANCE GROUP
TENTATIVE RULING:

Off calendar due to stipulation filed by parties. Contra Costa County Schools Insurance Group may file a complaint in intervention.